

CV-25-006753 BUILDING INDUSTRY ASSOCIATION OF THE GREATER VALLEY vs DEL PUERTO HEALTH CARE DISTRICT – Petition for Writ of Mandate – HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: A hearing is required. The Court is inclined to GRANT the petition for writ of mandate. The Court is inclined to DENY declaratory relief. Procedural Background On July 11, 2025, Petitioner/Plaintiff Building Industry Association of the Greater Valley ("BIAGV") filed a Petition for Writ of Mandate ("Petition") and Complaint for Declaratory and Injunctive Relief ("Complaint"). On March 16, 2026, Respondents/Defendants Del Puerto Health Care District and the Board of Directors of the Del Puerto Health Care District (collectively, "DPHCD") submitted an Answer to the Petition and Complaint. On March 18, 2026, Petitioner submitted an opening brief ("Brief"). On April 27, 2026, Respondents submitted an opposition brief ("Opposition"). On May 18, 2026, BIAGV submitted a reply brief ("Reply"). On April 30, 2026, Respondents lodged the Stipulated Record, Bates-stamped SRI-000001–SRI-005193, and including Exhibit Nos. 1–106. Requests for Judicial Notice On March 18, 2026, Petitioner submitted a request for judicial notice of the following documents: Exhibit A–Stanislaus County Public Facilities Fees Annual Report, and Exhibit B–email from David Taussig to Mark Turner re: SGIVIFCD Development Impact Fee Study. The request for judicial notice is DENIED as the documents are not relevant. On April 27, 2026, Respondents submitted a request for judicial notice of thirteen documents, largely consisting of fee schedules and resolutions of other local governments, unrelated to this matter. The request for judicial notice is DENIED as the documents are not relevant. BIAGV's petition for writ of mandate and complaint BIAGV contends that Respondents acted in excess of their jurisdiction by unlawfully adopting two board resolutions adopting a development fee nexus study and development impact fees to be imposed on new development: (1) Board Resolution No. 2025-10 adopting the 2025 Development Impact Fee Nexus Study in accordance with the Mitigation Fee Act (Government Code section 66000 et seq.), and (2) and Board Resolution No. 2025-11 adopting Development Impact Fees pursuant to the Mitigation Fee Act. (See SRI Ex. Nos. 52 and 53.) BIAGV seeks a (1) writ of mandate directing Respondents to set aside and vacate their unauthorized and void resolutions, and (2) declaratory relief, that the respondents' actions were beyond their legal authority and thus void. (Brief, 13–14.) BIAGV argues that Respondents do not have the authority to adopt development fees. BIAGV also argues that even if Respondents have authority to adopt development fees, Respondents failed to prove the development fees were lawfully calculated, justified or allocated proportionally to new development as required by the Mitigation Fee Act, the United States Constitution, and the California Constitution. Code of Civil Procedure section 1085 California Code of Civil Procedure section 1085 authorizes courts to issue a writ of mandate "to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station." (Code Civ. Proc., § 1085.) "The writ must be issued in all cases where there is not a plain, speedy, and adequate remedy, in the ordinary course of law." (Code Civ. Proc., § 1086.) "The inquiry in such a case shall extend to the questions whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion." (Code Civ. Proc., § 1094.5(b).) "Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence." (Ibid.) "The court shall enter judgment either commanding respondent to set aside the order or decision, or denying the writ." (Code Civ. Proc., § 1094.5(f).) Whether BIAGV is entitled to a writ of mandate Respondents argue that Petitioner has not demonstrated it is entitled to a writ of mandate. The Court does not agree. Petitioner has satisfied the two prerequisites for issuance of a writ of mandate. "There are essentially two prerequisites to issuance of a writ of mandate under Code of Civil Procedure section 1085: '(1) the respondent has a clear, present, and usually ministerial duty to act, and (2) the petitioner has a clear, present, and beneficial right to performance of that duty.' [Citation.]" (Monterey Mechanical Co. v. Sacramento Regional County Sanitation Dist. (1996) 44 Cal.App.4th 1391, 1413–1414. "To warrant the relief, the petitioner must demonstrate the public official or entity had a ministerial duty to perform. " 'A ministerial act is an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists. Discretion, on the other hand, is the power conferred on public functionaries to act officially according to the dictates of their own judgment.' [Citation.]" " (US Ecology, Inc. v. State of California (2001) 92 Cal.App.4th 113, 138.) Here, Respondents have a duty to act in compliance with the provisions of the California Constitution, the California Healthcare District Law (Health & Safety Code §§ 32000 et seq.), and also with the provisions of the Mitigation Fee Act. Respondents admitted that that they "have mandatory duties to conduct their actions . . . in conformity with the controlling provisions of the Constitution and state laws." (Answer, ¶ 17.) Therefore, Respondents have a duty to perform. (Monterey Mechanical Co., supra, 44 Cal.App.4th 1391 at 1414 ["It is undisputed the District has a duty to award the contract, if at all, to the lowest responsible bidder as contemplated by [Public Contracts Code] section 2000."].) "As

a general rule, a party must be 'beneficially interested' to seek a writ of mandate. (Code Civ. Proc., § 1086.) 'The requirement that a petitioner be 'beneficially interested' has been generally interpreted to mean that one may obtain the writ only if the person has some special interest to be served or some particular right to be preserved or protected over and above the interest held in common with the public at large. [Citations.] As Professor Davis states the rule: 'One who is in fact adversely affected by governmental action should have standing to challenge that action if it is judicially reviewable.' (Davis, 3 Administrative Law Treatise (1958) p. 291.)' [Citation.] The beneficial interest must be direct and substantial. [Citations]" (Save the Plastic Bag Coalition v. City of Manhattan Beach (2011) 52 Cal.4th 155, 165." Here, Petitioner has a beneficial interest and standing to bring the action. The development impact fees directly affect Petitioner and its members who have an interest in ensuring that Respondents do not impose unlawful fees. (See e.g., Friends of Oceano Dunes, Inc. v. San Luis Obispo County Air Pollution Control Dist. (2015) 235 Cal.App.4th 957, 962, as modified on denial of reh'g (Apr. 23, 2015).) Authority to adopt the resolutions Respondents do not have the authority to adopt the resolutions. Respondent Del Puerto Health Care District is a special district organized and existing under the California Healthcare District Law (Health & Safety Code §§ 32000 et seq.). Since Del Puerto Health Care District is not a city or a county, it does not have the constitutional police power to adopt development impact fees. (California Bldg. Industry Assn. v. Governing Bd. (1988) 206 Cal.App.3d 212, 234 [253 Cal.Rptr. 497, 509], modified (Dec. 29, 1988) ["Development fees are an exercise of the local police power granted to cities and counties by article XI, section 7 of the California Constitution."]; see also Discovery Builders, Inc. v. City of Oakland (2023) 92 Cal.App.5th 799, 810 ["Development fees are an exercise of this police power."].) Instead, "[special] districts are purely creatures of the Legislature and their powers are found in legislation." (73 Ops.Cal.Atty.Gen. 229, *4 (1990).) The Healthcare District Law provides for only three methods of financing: (1) annual assessments on real and personal property (Health & Saf. Code, section 32200 et. seq.), (2) special assessments (section 32240 et. seq.), and (3) bond issues (section 32330, et. seq.). (E.g., Paso Robles War Memorial Hospital Dist. v. Negley (1946) 29 Cal.2d 203, 206.) The Healthcare District Law does not provide Respondents the authority to adopt development impact fees. Similarly, the Mitigation Fee Act does not provide Respondents the authority to adopt the resolutions. Respondents argue that pursuant to the Mitigation Fee Act, Respondents may adopt fees and collect such fees indirectly from cities and counties who have authority to impose such fees, as opposed to directly imposing the fees on developers. (E.g., Opposition at 14.) That is incorrect. The Mitigation Fee Act "assumes the preexistence of authority from sources outside the section both to approve a development project and to impose a fee as a condition to such approval." (73 Ops.Cal.Atty.Gen. 229 (1990).) The relevant sections merely establish "procedural requirements" that must be followed by a public agency that has authority to approve a development project and to impose a fee. (Ibid. ["The purpose of the section is to make additional procedural requirements when such authority is exercised."].) Respondents do not have any external authority to approve a development project and impose fees. Respondents tacitly admit as much by arguing they do not intend to directly impose any development impact fees but that it will collect only fees imposed by a city or county. Therefore, the Mitigation Fee Act does not provide authority to support Respondents' adoption of the resolutions. Accordingly, the adoptions of the resolutions by Respondents constitute unlawful, ultra vires acts. The petition for writ of mandate is GRANTED. Respondents shall take action to vacate the resolutions within 30 days of the service of the signed order. Declaratory relief Petitioner/Plaintiff seeks declaratory relief that the Respondents' actions were beyond their legal authority and thus void. (Brief, 13–14.) A court may grant declaratory relief under California Code of Civil Procedure section 1060, which allows any person to "bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises" in cases of actual controversy. (Code Civ. Proc., § 1060.) "The court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances." (Code Civ. Proc., § 1061.) Because the Court has granted the petition for writ of mandate, the request for declaratory judgment is "unnecessary and superfluous." (Hood v. Superior Court (1995) 33 Cal.App.4th 319, 324.) Accordingly, Petitioner/Plaintiff's request for declaratory relief is DENIED. Petitioner to submit a proposed order within 5 court days that confirms to this ruling.

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judgment either commanding respondent to set aside the order or decision, or denying the writ.” (Code Civ. Proc., § 1094.5(f).)

Whether BIAGV is entitled to a writ of mandate

Respondents argue that Petitioner has not demonstrated it is entitled to a writ of mandate. The Court does not agree. Petitioner has satisfied the two prerequisites for issuance of a writ of mandate.

“There are essentially two prerequisites to issuance of a writ of mandate under Code of Civil Procedure section 1085: ‘(1) the respondent has a clear, present, and usually ministerial duty to act, and (2) the petitioner has a clear, present, and beneficial right to performance of that duty.’ [Citation.]” (Monterey Mechanical Co. v. Sacramento Regional County Sanitation Dist. (1996) 44 Cal.App.4th 1391, 1413–1414.

“To warrant the relief, the petitioner must demonstrate the public official or entity had a ministerial duty to perform. “ ‘A ministerial act is an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act’s propriety or impropriety, when a given state of facts exists. Discretion, on the other hand, is the power conferred on public functionaries to act officially according to the dictates of their own judgment.’ [Citation.]” (US Ecology, Inc. v. State of California (2001) 92 Cal.App.4th 113, 138.)

Here, Respondents have a duty to act in compliance with the provisions of the California Constitution, the California Healthcare District Law (Health & Safety Code §§ 32000 et seq.), and also with the provisions of the Mitigation Fee Act. Respondents admitted that they “have mandatory duties to conduct their actions . . . in conformity with the controlling provisions of the Constitution and state laws.” (Answer, ¶ 17.) Therefore, Respondents have a duty to perform. (Monterey Mechanical Co., supra, 44 Cal.App.4th 1391 at 1414 [“It is undisputed the District has a duty to award the contract, if at all, to the lowest responsible bidder as contemplated by [Public Contracts Code] section 2000.”].)

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Authority to adopt the resolutions

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Accordingly, the adoptions of the resolutions by Respondents constitute unlawful, ultra vires acts. The petition for writ of mandate is GRANTED. Respondents shall take action to vacate the resolutions within 30 days of the service of the signed order.

Declaratory relief

Petitioner/Plaintiff seeks declaratory relief that the Respondents’ actions were beyond their legal authority and thus void. (Brief, 13–14.)

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Petitioner to submit a proposed order within 5 court days that confirms to this ruling.